THE POLICE COMMISSIONER
CITY OF NEW YORK

MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM THE DISCIPLINARY SYSTEM PENALTY GUIDELINES

Re: PODS Case No. C-031546 regarding Detective Lamarr Barnes. Tax No. 950049

Date: October 19, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Detective Barnes stopped an individual without sufficient authority, failed to offer a Right-to-Know business card, detained and strip-searched an individual without sufficient legal authority, and made an inaccurate statement to the CCRB. The CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by the CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Detective Barnes will receive a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days, as negotiated by the CCRB.

Jessica S. Tisch
Police Commissioner

1 Police Plaza, New York, NY 10038 • 646-610-5410 • Fax: 646-610-5865
Website: http://nyc.gov/nypd

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb

ZOHRAN K. MAMDANI
MAYOR

PAT SMITH
INTERIM CHAIR

February 4, 2026

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. DTS Lamarr Barnes
(Tax Reg #950049, CCRB #202203665)

Commissioner Tisch:

A negotiated settlement for a Schedule B Command Discipline with the forfeiture of 10 vacation days was agreed upon and signed by all parties on January 7, 2026. Assistant Deputy Commissioner – Paul M. Gamble Sr., endorsed the negotiated settlement on February 3, 2026.

At approximately 7:17 p.m. on the incident date, a 911 radio run was generated for a gang assault in the vicinity of 9th Avenue and 43rd Street in Manhattan. Det. Lamarr Barnes and PO Andrew Bhagan separately responded to the scene with various other officers from the Midtown South Precinct and the Times Square Unit. A stop report prepared after the incident shows that officers briefly interviewed a victim who had been stabbed, and he provided a description of the man who stabbed him. Officers had also obtained images of the suspects from nearby security footage, including the individual who allegedly stabbed the victim. The images and the stop report establish that the perpetrator was a light-skinned Black or Hispanic man with either braids or dreadlocks, who was wearing a dark-colored do-rag, noticeably ripped jeans, plain white Nike sneakers, and a plain blue sweatshirt free of any logos or insignias. It is not in dispute that Complainant is a light-skinned Hispanic man and that he was wearing a blue sweater, ripped jeans, and white Nike Air Force 1 sneakers.

On May 10, 2022, at approximately 8:50 p.m., Det. Barnes and PO Bhagan of Midtown South stopped Complainant outside 323 West 40th Street in Manhattan. At the same time, they stopped Complainant's friend. Det. Barnes frisked Complainant. PO Bhagan frisked

Complainant's friend. At the conclusion of the street stop, Det. Barnes and PO Bhagan failed to provide Complainant's friend with a business card. Det. Barnes detained Complainant by removing him to the Midtown South stationhouse. Once at the stationhouse, Det. Barnes strip-searched Complainant by ordering him to remove his pants in the overflow cell area. On November 2, 2022, at approximately 11:21 a.m., at 100 Church Street in Manhattan, Det. Barnes provided an inaccurate official statement to the CCRB where he initially denied ordering Complainant to remove his pants. Complainant was ultimately released with a DAT for seventh-degree criminal possession of a controlled substance. Documentation from the Manhattan District Attorney's office confirmed that this charge was dismissed.

NYPD disciplinary guidelines indicate that for Strip Search (unauthorized/unwarranted), the mitigated penalty is the forfeiture of 20 Penalty Day, the presumptive penalty is 20 Suspension Days + Dismissal Probation, and the aggravated penalty is Termination

The negotiated settlement deviates from NYPD disciplinary guidelines for the subject charge for the following reasons: Det. Barnes has been a member of the service for 14 years, he has accepted responsibility for his actions in this matter, and the incident at issue was fast moving. For these reasons, the CCRB deems it appropriate to deviate from the Matrix and recommends a Schedule B Command Discipline with the forfeiture of 10 vacation days.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

Cc: Marissa Gillespie